BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95205
Plaintiff, Pro Se

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF CALIFORNIA
SACRAMENTO DIVISION

FILED
FEB 20 2026
CLERK, U.S. DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA
BY _____
DEPUTY CLERK

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

ANDREW DERRICK, et al.,

Defendants.

No. 2:26-cv-00004-DJC-JDP

PLAINTIFF'S MOTION FOR LEAVE TO FILE SUPPLEMENTAL OPPOSITION TO DEFENDANTS' MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT

Date: March 19, 2026
Time: 10:00 a.m.
Courtroom: 9, 13th Floor
Judge: The Honorable Jeremy D. Peterson

INTRODUCTION

Plaintiff Brendan Ngehsi Newanforbi, appearing pro se, respectfully moves this Court for leave

to file a supplemental opposition addressing the merits of Defendants' Rule 12(b)(6) motion to dismiss Plaintiff's First Amended Complaint ("FAC"). The proposed supplemental opposition is attached hereto as **Exhibit A**.

This motion is brought pursuant to the Court's inherent authority to manage its docket, Local Rule 230, and in the interests of justice and completeness of the record before the Court.

BACKGROUND

On January 30, 2026, Defendants filed a combined motion to quash insufficient service of process under Rule 12(b)(5) or, in the alternative, to dismiss Plaintiff's FAC under Rule 12(b)(6). (ECF No. 9.) The motion raised two distinct categories of arguments: (1) that Plaintiff's service of process was procedurally defective; and (2) that the FAC fails to state viable claims for declaratory relief, substantive due process, and First Amendment retaliation.

On February 2, 2026, Plaintiff timely filed an opposition (ECF No. 10) addressing the service-of-process issues. Plaintiff's opposition focused on demonstrating that service was being cured, that good cause existed for any delay under Rule 4(m), and that Defendants suffered no prejudice. Plaintiff's opposition addressed the Rule 12(b)(6) arguments only to the extent of arguing that the motion to dismiss was premature and should be resolved separately from the service issues. (ECF No. 10, at 7–9.)

On February 12, 2026, Defendants filed their reply (ECF No. 12), in which they argue that Plaintiff's failure to substantively address the Rule 12(b)(6) grounds in his opposition constitutes a waiver of opposition under Local Rule 230(b). (ECF No. 12, at 3.) Defendants further state

that, to the extent Plaintiff's January 30, 2026 re-service by mail includes the correct documentation and is directed to the individual Defendants rather than the Attorney General's Office, Defendants will waive service and formally appear. (ECF No. 12, at 3.) This effectively narrows the dispute to the Rule 12(b)(6) issues—the very arguments Plaintiff has not yet substantively addressed.

ARGUMENT

I. Good Cause Exists for Leave to File a Supplemental Opposition.

Plaintiff respectfully submits that good cause supports the filing of a supplemental opposition for the following reasons.

First, Plaintiff's initial opposition addressed the service-of-process arguments as a threshold matter in good faith. Rule 12(b)(5) challenges are jurisdictional in nature, and Plaintiff reasonably prioritized demonstrating that service was being cured before engaging on the merits. Plaintiff's opposition did not ignore the Rule 12(b)(6) arguments but instead asked the Court to resolve service first and require Defendants to refile their dismissal motion once service was complete. (ECF No. 10, at 7–9.) While Plaintiff acknowledges that Defendants were within their rights to combine these arguments under Rule 12(g), Plaintiff's strategic decision to address service first was not an intentional abandonment of his claims.

Second, Defendants' reply has materially changed the posture of this case. By indicating their willingness to waive service (ECF No. 12, at 3), Defendants have effectively conceded that the service issues may become moot, leaving the Rule 12(b)(6) motion as the primary dispute before the Court. Simultaneously, Defendants have raised a waiver argument under Local Rule 230(b)

that did not exist when Plaintiff filed his opposition. Plaintiff should have the opportunity to respond to this changed circumstance and ensure the Court has the benefit of adversarial briefing on the merits.

Third, courts in this district and throughout the Ninth Circuit afford pro se litigants liberal construction of their filings and additional latitude in procedural matters. *Erickson v. Pardus*, 551 U.S. 89, 94 (2007); *Balistreri v. Pacifica Police Dep't*, 901 F.2d 696, 699 (9th Cir. 1990). Pro se plaintiffs are frequently granted leave to supplement or amend filings where, as here, the request is timely, made in good faith, and would not prejudice the opposing party. Treating Plaintiff's silence on the merits as a waiver—when Plaintiff is unrepresented and reasonably focused on a threshold jurisdictional challenge—would be inconsistent with this policy.

II. No Prejudice to Defendants or the Court.

Granting leave to file the attached supplemental opposition would cause no prejudice to Defendants and would not disrupt the Court's schedule. The hearing on Defendants' motion is set for March 19, 2026—about four weeks from the date of this filing. Defendants will have adequate time to review the supplemental opposition and, if they choose, to seek leave to file a sur-reply or to address Plaintiff's arguments at the hearing.

Moreover, allowing supplemental briefing serves the interests of justice by ensuring that the Court has a complete record on which to evaluate the sufficiency of Plaintiff's claims. Dismissal of a civil rights complaint on waiver grounds—without any consideration of the merits—would be a particularly harsh result for a pro se plaintiff bringing claims under 42 U.S.C. § 1983 for retaliation, racial discrimination, and due process violations.

III. The Supplemental Opposition Is Narrowly Tailored.

The proposed supplemental opposition, attached as Exhibit A, is limited solely to the Rule 12(b)(6) arguments raised in Defendants' motion (ECF No. 9, at 9–12). It does not re-argue the service-of-process issues already briefed. Specifically, the supplemental opposition addresses: (1) the availability of declaratory relief; (2) the viability of Plaintiff's substantive due process claim as distinct from his First Amendment claim; (3) the sufficiency of Plaintiff's allegations of protected conduct; and (4) Defendant Noguchi's personal participation. Plaintiff seeks only to ensure that his substantive claims are not dismissed without being heard on the merits.

CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that this Court grant leave to file the attached Supplemental Opposition to Defendants' Motion to Dismiss Plaintiff's First Amended Complaint (Exhibit A). Plaintiff further requests that Defendants be permitted to file a sur-reply or otherwise respond to the supplemental opposition if they so choose.

Dated: February 13, 2026

Respectfully submitted,

BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95205

EXHIBIT A

BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95205
Plaintiff, Pro Se

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF CALIFORNIA
SACRAMENTO DIVISION

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

ANDREW DERRICK, et al.,

Defendants.

No. 2:26-cv-00004-DJC-JDP

[PROPOSED] PLAINTIFF'S SUPPLEMENTAL OPPOSITION TO DEFENDANTS' MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT UNDER RULE 12(b)(6)

Date: March 19, 2026
Time: 10:00 a.m.
Courtroom: 9, 13th Floor
Judge: The Honorable Jeremy D. Peterson

MEMORANDUM OF POINTS AND AUTHORITIES

INTRODUCTION

Plaintiff Brendan Ngehsi Newanforbi, appearing pro se, respectfully submits this supplemental opposition to address the merits of Defendants' motion to dismiss Plaintiff's First Amended Complaint ("FAC") under Federal Rule of Civil Procedure 12(b)(6). (ECF No. 9, at 9–12.) This supplemental opposition is filed pursuant to the Court's grant of leave and addresses only the Rule 12(b)(6) arguments raised by Defendants; the service-of-process issues have been separately briefed.

As set forth below, the FAC states plausible claims for relief under 42 U.S.C. § 1983 for First Amendment retaliation, Fourteenth Amendment equal protection, and Fourteenth Amendment substantive due process. The FAC also properly seeks declaratory relief. Defendants' arguments to the contrary mischaracterize the FAC's allegations and apply an improperly heightened pleading standard that is inconsistent with the liberal construction afforded pro se complaints. *Erickson v. Pardus*, 551 U.S. 89, 94 (2007).

LEGAL STANDARD

To survive a Rule 12(b)(6) motion, a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). Plausibility does not require probability, but demands more than labels and conclusions. *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007). Courts must accept all well-pleaded factual allegations as true and draw all reasonable inferences in the plaintiff's favor. *Daniels-Hall v. Nat'l Educ. Ass'n*, 629 F.3d 992, 998 (9th Cir. 2010).

Pro se pleadings are held to a less stringent standard than those drafted by attorneys and must be liberally construed. *Erickson*, 551 U.S. at 94; *Hebbe v. Pliler*, 627 F.3d 338, 342 (9th Cir. 2010) (after *Iqbal*, courts must continue to liberally construe pro se filings). Where a

complaint can be cured by amendment, dismissal without leave to amend is improper. *Lopez v. Smith*, 203 F.3d 1122, 1127 (9th Cir. 2000) (en banc).

ARGUMENT

I. THE FAC STATES A PLAUSIBLE FIRST AMENDMENT RETALIATION CLAIM.

Defendants argue that Plaintiff fails to plead (a) protected conduct, (b) causation as to Defendant Noguchi, and (c) Defendant Noguchi's personal participation. (ECF No. 9, at 10–12.) Each argument fails when the FAC is read in its entirety and given the liberal construction to which pro se pleadings are entitled.

A. Plaintiff Plausibly Alleges Protected Conduct.

The Ninth Circuit has long recognized that complaints about government programs, conditions of confinement, and the conduct of government officials constitute protected speech under the First Amendment. *Rhodes v. Robinson*, 408 F.3d 559, 567–68 (9th Cir. 2005); *Brodheim v. Cry*, 584 F.3d 1262, 1269–70 (9th Cir. 2009). Filing grievances and making oral complaints to officials about conditions in government-mandated programs are core protected activities. *Entler v. Gregoire*, 872 F.3d 1031, 1039–40 (9th Cir. 2017).

The FAC identifies Plaintiff's protected speech with substantial specificity. Plaintiff alleges that in 2024, during HOPE group sessions, he raised complaints about disrespectful treatment by program staff, loss of his homework by staff despite timely completion, and group resets caused by clinician turnover. (FAC ¶¶ 13–14.) Critically, the FAC alleges that Plaintiff's speech "concerned his treatment by state actors and was constitutionally protected activity addressing matters of public concern." (FAC ¶ 13.) Complaints about the administration and

conditions of a mandatory government reentry program—including staff misconduct and program mismanagement—are quintessentially matters of public concern. *See Pratt v. Rowland*, 65 F.3d 802, 806 (9th Cir. 1995) (prisoner's complaints about conditions are protected speech for retaliation purposes).

Moreover, Plaintiff's individual interactions with Defendant Derrick constitute additional protected speech. When Plaintiff asserted that he had freedom of speech, Defendant Derrick explicitly told him: "You do not have freedom of speech. Not in HOPE group you don't." (FAC ¶ 18.) This direct statement by a parole agent denying a parolee's First Amendment rights, followed by a series of escalating adverse actions, is powerful evidence that the retaliatory motive was tied to speech, not disruption. *See Brodheim*, 584 F.3d at 1271 (statements by officials reflecting hostility to plaintiff's speech support inference of retaliatory motive).

Plaintiff also attempted to file a CDCR Form 22 requesting reassignment—a formal written complaint through official channels—but abandoned it after Defendant Derrick confronted him and accused him of "complaining." (FAC ¶¶ 39–40.) The filing of formal grievances is protected activity as a matter of law. *Entler*, 872 F.3d at 1039–40.

Defendants' reliance on *Lockett v. Suardini*, 526 F.3d 866 (6th Cir. 2008), is misplaced. *Lockett* involved a Sixth Circuit case where the plaintiff's sole speech act was making insolent remarks during a prison disciplinary hearing—a far cry from Plaintiff's sustained complaints about program conditions, assertions of constitutional rights, and attempts to file formal grievances. Moreover, characterizing Plaintiff's speech as "disruptive" is itself the retaliatory act that Plaintiff challenges; the Court cannot accept Defendants' characterization of Plaintiff's speech as a basis for dismissal at the pleading stage. *See Rhodes*, 408 F.3d at 568 (the question of

whether conduct is protected is typically a fact question inappropriate for resolution on a motion to dismiss).

B. Plaintiff Plausibly Alleges Causation and Defendant Noguchi's Personal Participation.

Defendants argue that the FAC fails to plead causation as to Defendant Noguchi and that Noguchi's actions amount to routine supervision. (ECF No. 9, at 10–12.) This argument ignores the totality of the FAC's allegations.

Supervisory liability under § 1983 in the Ninth Circuit does not require direct participation in every act. A supervisor may be liable if the supervisor "knew of, and failed to prevent, unconstitutional conduct by subordinates," or "acquiesced in the constitutional deprivation," or "implemented a policy so deficient that the policy itself was a repudiation of constitutional rights." *Starr v. Baca*, 652 F.3d 1202, 1207–08 (9th Cir. 2011). The key question is whether the supervisor's own actions or knowing inaction were the proximate cause of the constitutional injury. *Id.*

The FAC plausibly alleges that Defendant Noguchi's involvement went far beyond routine administrative tasks:

First, Defendant Noguchi had actual knowledge of Plaintiff's complaints, his reassignment request at the CTM, and Defendant Derrick's retaliatory conduct. (FAC ¶ 32.) Despite this knowledge, Noguchi denied Plaintiff's reassignment request, thereby ensuring that Plaintiff would remain under the supervision of the very agent he had accused of retaliation. (FAC ¶ 30.) Denying a reassignment request with knowledge of the underlying retaliation

complaint is not a routine administrative act—it is an affirmative decision that perpetuated the constitutional violation.

Second, Defendant Noguchi approved new parole conditions in August 2025 that added restrictions not contained in Plaintiff's original parole terms. (FAC ¶ 35.) These new conditions were imposed in the context of Defendant Derrick's escalating retaliation and in the absence of any new parole violations. Approving materially more restrictive conditions based on a subordinate's retaliatory recommendation—without any independent penological justification—constitutes knowing ratification. *See Starr*, 652 F.3d at 1207–08.

Third, in November 2025, Defendant Noguchi reviewed and approved the Discharge Review Report—a report that relied on Defendants Derrick and Palacios's characterizations of Plaintiff as "disruptive" and a "ringleader"—recommending continued retention on parole. (FAC ¶¶ 36–37.) The FAC specifically alleges that by approving this report, Noguchi "ratif[ied] the underlying retaliatory and arbitrary conduct of Defendants Derrick and Palacios." (FAC ¶ 37.) Ratification of a subordinate's unconstitutional conduct is a recognized basis for supervisory liability. *Starr*, 652 F.3d at 1207–08; *Larez v. City of Los Angeles*, 946 F.2d 630, 646 (9th Cir. 1991) (ratification can establish supervisory liability where supervisor has knowledge of constitutional violation and approves subordinate's conduct).

Fourth, the FAC alleges that throughout 2025, Defendants Derrick and Noguchi "coordinated parole supervision decisions." (FAC ¶¶ 49–50.) Read together, these allegations describe not a passive supervisor rubber-stamping paperwork, but an active participant in a pattern of escalating adverse actions taken against Plaintiff after he engaged in protected speech—with full knowledge that Plaintiff had complained of retaliation.

At the pleading stage, these allegations are sufficient. The Court must draw reasonable inferences in Plaintiff's favor, and the cumulative allegations plausibly suggest that Defendant Noguchi knowingly facilitated and ratified Defendant Derrick's retaliatory conduct.

II. PLAINTIFF'S SUBSTANTIVE DUE PROCESS CLAIM IS NOT DUPLICATIVE.

Defendants argue that Plaintiff's substantive due process claim (Count III) is duplicative of his First Amendment retaliation claim (Count I) because both arise from the same conduct. (ECF No. 9, at 9.) While it is true that where a specific constitutional provision governs, it generally provides the framework for analysis, *Graham v. Connor*, 490 U.S. 386, 395 (1989), the FAC's substantive due process claim rests on a distinct constitutional theory.

The due process claim is framed as an "Arbitrary Abuse of Power" claim. (FAC at 18.) Its core theory is not that Defendants retaliated against Plaintiff's speech, but that Defendants abused their governmental authority by engaging in conscience-shocking conduct that bears no rational relationship to any legitimate penological interest. (FAC ¶¶ 76–78.) Specifically, Plaintiff alleges that Defendants acted "with ample opportunity for actual deliberation in a non-emergent context" and that their actions "were not the result of negligence or split-second decision-making but reflected deliberate indifference to Plaintiff's constitutional rights." (FAC ¶ 77.)

This framing targets conduct that goes beyond speech retaliation. The due process claim encompasses allegations that Defendants knowingly denied employment accommodation when another parolee in the same program received reduced attendance, revoked a standing grace period despite its legitimate use for employment, escalated supervision without any documented

risk or violation, imposed new conditions untethered to any penological goal, and prolonged parole retention through a biased Discharge Review Report. (FAC ¶ 78.)

The Ninth Circuit has recognized that substantive due process provides an independent basis for relief where government actors abuse their authority in ways that are arbitrary and conscience-shocking, even when other constitutional provisions may also apply. *Cnty. of Sacramento v. Lewis*, 523 U.S. 833, 846–49 (1998); *Porter v. Osborn*, 546 F.3d 1131, 1137 (9th Cir. 2008). Where, as here, the plaintiff alleges a pattern of deliberate, non-emergency executive abuse of power by officials who had time to deliberate and chose to act in bad faith, the due process claim is analytically distinct from a speech-retaliation claim.

At minimum, even if the Court were inclined to find some overlap, the proper remedy is not dismissal with prejudice as Defendants request. The Court should permit Plaintiff to proceed on alternative theories, as Federal Rule of Civil Procedure 8(d)(2) expressly allows. *See Fed. R. Civ. P. 8(d)(2)* ("A party may set out 2 or more statements of a claim or defense alternatively."). If the evidence at trial shows the claims are truly coextensive, the issue can be resolved at summary judgment or through jury instructions.

III. PLAINTIFF'S CLAIM FOR DECLARATORY RELIEF IS VIABLE.

Defendants contend that declaratory relief is unavailable against Defendants sued in their individual capacities, citing *Flores v. Von Kleist*, 739 F. Supp. 2d 1236, 1260 (E.D. Cal. 2010). (ECF No. 9, at 9.) To the extent the FAC's prayer for declaratory relief is directed solely at Defendants in their individual capacities, Plaintiff acknowledges this authority. However, the proper remedy is to construe the FAC as seeking prospective declaratory relief against Defendants in their official capacities, not to dismiss the claim entirely.

Pro se complaints are construed liberally, and the Court may interpret a plaintiff's claims to find the strongest basis for relief. *Balistreri v. Pacifica Police Dep't*, 901 F.2d 696, 699 (9th Cir. 1990). Declaratory relief under the Declaratory Judgment Act, 28 U.S.C. §§ 2201–2202, is appropriate where there is an actual controversy between parties acting in their official capacities. *See Wolfe v. Strankman*, 392 F.3d 358, 360 (9th Cir. 2004). Where a plaintiff subject to ongoing parole supervision alleges that the supervisory practices and conditions being applied to him violate his constitutional rights, a live controversy exists that is amenable to declaratory relief against the officials responsible.

In the alternative, if the Court determines that declaratory relief is unavailable under the FAC's current framing, Plaintiff respectfully requests leave to amend to clarify the capacity in which declaratory relief is sought. Dismissal with prejudice would be inappropriate, as any deficiency in this regard is easily cured. *Lopez v. Smith*, 203 F.3d 1122, 1127 (9th Cir. 2000) (en banc).

IV. DEFENDANTS' MOTION DOES NOT CHALLENGE PLAINTIFF'S EQUAL PROTECTION CLAIM.

Plaintiff notes that Defendants' motion to dismiss does not challenge the sufficiency of Count II, the equal protection claim alleging race-based disparate treatment. (See ECF No. 9, at 9–12.) The FAC alleges that Defendants Derrick and Palacios treated Plaintiff less favorably than similarly situated parolees of a different race with respect to employment accommodations, supervision frequency and intensity, imposition of additional conditions, and characterization in official reports. (FAC ¶¶ 69–74.) Those allegations stand unchallenged.

V. IN THE ALTERNATIVE, PLAINTIFF REQUESTS LEAVE TO AMEND.

If the Court finds any claim in the FAC to be insufficiently pleaded, Plaintiff respectfully requests leave to amend rather than dismissal with prejudice. Leave to amend should be freely given when justice so requires. Fed. R. Civ. P. 15(a)(2). Dismissal of a pro se complaint without leave to amend is proper only if it is absolutely clear that the deficiencies cannot be cured by amendment. *Akhtar v. Mesa*, 698 F.3d 1202, 1212 (9th Cir. 2012).

This is the first Rule 12(b)(6) challenge to Plaintiff's FAC. Plaintiff has not previously been informed by the Court of any pleading deficiency. If the Court identifies specific deficiencies in the allegations supporting any claim, Plaintiff can cure them through amendment. Particularly with respect to the specificity of Plaintiff's protected speech and Defendant Noguchi's involvement, Plaintiff is prepared to add factual detail if the Court finds the current allegations insufficient.

CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court deny Defendants' motion to dismiss the First Amended Complaint under Rule 12(b)(6). The FAC states plausible claims for First Amendment retaliation, Fourteenth Amendment substantive due process, and Fourteenth Amendment equal protection, and the request for declaratory relief is viable or, at minimum, curable by amendment. If the Court finds any claim insufficiently pleaded, Plaintiff requests leave to amend.

Respectfully submitted,

Dated: February 13, 2026

BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se
1455 Cat Tail Drive
Stockton, CA 95205

PROPOSED ORDER

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF CALIFORNIA
SACRAMENTO DIVISION

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

ANDREW DERRICK, et al.,

Defendants.

No. 2:26-cv-00004-DJC-JDP

[PROPOSED] ORDER GRANTING PLAINTIFF'S MOTION FOR LEAVE TO FILE SUPPLEMENTAL OPPOSITION

The Court, having reviewed Plaintiff's Motion for Leave to File Supplemental Opposition to Defendants' Motion to Dismiss Plaintiff's First Amended Complaint, and good cause appearing, hereby ORDERS as follows:

1. Plaintiff's Motion for Leave to File Supplemental Opposition is GRANTED.

2. The Clerk of Court is directed to file Plaintiff's Supplemental Opposition to Defendants' Motion to Dismiss Plaintiff's First Amended Complaint Under Rule 12(b)(6), attached as Exhibit A to the Motion for Leave, as part of the record in this action.

3. Defendants may file a sur-reply addressing the Supplemental Opposition within fourteen (14) days of the date of this Order.

4. The hearing on Defendants' Motion to Quash Insufficient Service of Process, or in the Alternative, Dismiss Plaintiff's First Amended Complaint (ECF No. 9) remains set for March 19, 2026, at 10:00 a.m. in Courtroom 9.

IT IS SO ORDERED.

Dated: _____

_____
HONORABLE JEREMY D. PETERSON
UNITED STATES MAGISTRATE JUDGE

PROOF OF SERVICE

I, Brendan Ngehsi Newanforbi, hereby certify that on February 17, 2026, I served a true and correct copy of the foregoing PLAINTIFF'S MOTION FOR LEAVE TO FILE SUPPLEMENTAL OPPOSITION TO DEFENDANTS' MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT, together with all attachments, by placing a copy in a sealed envelope with first-class postage prepaid and depositing it in the United States mail, addressed to:

Erick J. Rhoan
Deputy Attorney General
Office of the Attorney General
2550 Mariposa Mall, Room 5090
Fresno, CA 93721-2271

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Dated: February 17, 2026

BRENDAN NGEHSI NEWANFORBI
Plaintiff, Pro Se